

JUSTIFICATION FOR SOLE SOURCE
(Simplified Procedures - MPT to ≤ SAT)

Document number: TBD

The supplies or services described herein are being solicited on a *sole source* basis and competition is precluded for reasons indicated below. There are no substitutes available for the supplies or services.

Check One:

☐ **Service:**

Contractor:	
Contractor Address:	
Contractor POC:	
Phone #:	
Email:	
Cage Code/DUNS:	

☒ **Supply:**

Restricted to the following source. If a manufacturer distributes via dealers, ALSO provide dealer information.)

Original Manufacturer Name:	Vanguard
Manufacturer:	Vanguard
Manufacturer POC:	Cindy Asebedo
Manufacturer Phone #:	1-800-433-1334 ext 104
Manufacturer Address:	2440 Impala Drive, Carlsbad, CA 92010
Dealer/Rep:	N/A
Dealer/Rep Address Phone No.	N/A
Email:	casebedo@vanguardmil.com

Description of the supplies or services required, the estimated price/cost, and required delivery date.

This procurement provide equipment and materials for Stewards of the Sea (SOTS) public outreach related to at-sea training and testing. The U.S. Navy's SOTS program was initialized in 2013 to help combat misinformation regarding the Navy's environmental impacts during at-sea training and testing. The SOTS branding is utilized to give the general public information on the Navy's environmental messaging concerning at-sea training and testing activities.

Stewie is the Navy's environmental mascot and is a representation of a (green) sea turtle with the globe displayed on his back shell. The design for replacement STEWIE mascot outfits requires development and two new exterior suites need to be purchased.

There is a need to create two graphic layouts: one for retractable informational rollup graphics and another for one outdoor, hangable, reuseable backdrop with SOTS branding and shipboard plastic waste processing (PWP) information. Additionally, marine mammal of the U.S. East Coast and Gulf of America handout sheets and SOTS trifold brochures will be purchased.

The estimated price is [REDACTED] In conclusion, the requested supplies or services represent the minimum requirements of the government.

Describe in detail why only this source can furnish the requirements to the exclusion of other sources. (what specific characteristics of the supplies or services limit the availability to a sole source (e.g., unique features, function of the item, etc.)?)

☒ *A patent, copyright or proprietary data limits competition.*

From the Navy Patent Trademark Office Attorney: The following is provided in response to your inquiry regarding the Stewards of the Sea Program: The interest in the program began in 2015, with an inquiry on how to protect and use the Stewards Crest and the Stewie image.

At that time, we ("the Navy") began registration of the requisite marks with the Patent Trademark Office (PTO) via the Office of Naval Research (ONR). In addition, we made further inquiries of various licensed vendors that we thought be able to provide the items that Fleet Forces determined would best promote and represent the Program. These included many items focusing on infants

and toddlers through high school age and was IAW STEM initiatives that related to the Program. There was one licensee that provided the proper Portfolio of products that fit our needs. They developed products over the years and made substantial investments in the Program. It was determined based on that commitment and on market share analysis that this would be a “Market Share License” and that vendor would be the only the licensee for the Program. The only exception would be products that they could not provide.

Market share licenses within the Navy Trademark & Licensing Program & the Naval Aviation Trademark Program only are in effect for a small number of licensees on specific license type/products, approximately 1%. These are done for various reasons but ultimately for the Promotion and Protection of the Mark as specified in DoDD 5535.09. In this case, both market share analyses and product investment needs were considered. With respect to those “Market Share Licenses”, they are the only vendors that can be used for product that falls within the license. In the case of the Stewards of the Sea Program, that vendor is Vanguard.

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I CERTIFY THAT THE INFORMATION PROVIDED ABOVE IS COMPLETE AND ACCURATE TO THE BEST OF MY KNOWLEDGE. I UNDERSTAND THAT THE PROCESSING OF THIS SOLE SOURCE JUSTIFICATION PRECLUDES THE USE OF FULL AND OPEN COMPETITION.

Signature

Date

U.S. Fleet Forces
Requiring Activity

Branch Head, Environmental Resources and Planning (N4651)
Title

I HEREBY DETERMINE THAT THE CIRCUMSTANCES OF THE CONTRACT ACTION DEEM ONLY ONE SOURCE REASONABLY AVAILABLE.

Contracting Officer Signature
NAVSUP Fleet Logistics Center
Norfolk Contracting Department
Fleet Directorate

Date